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IN THE LABOUR COURT OF SOUTH
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-083299**

In the matter between:

Wilbur Matthee William Matthee

Plaintiff / Applicant

and

**AFROCENTRIC HEALTH (RF) (PTY)
LTD, MEDSCHEME HOLDINGS (PTY)
LTD**

Defendant / Respondent

Replication [Rule 25(1)]

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ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,
Cape Town**

**IN THE LABOUR COURT OF SOUTH AFRICA
(HELD AT CAPE TOWN)**

CASE NO: 2026-083299 CONCURRENT CASE NO: 2026-077546

In the matter between:

WILBUR WILLIAM MATTHEE
(Plaintiff / Applicant)

and

AFROCENTRIC HEALTH (PTY) LTD
(Registration No: 1996/009540/07)
(First Defendant / Respondent)

MEDSCHEME HOLDINGS (PTY) LTD
(Second Defendant / Respondent)



**PLAINTIFF'S REPLICATION TO THE DEFENDANTS' STATEMENT OF
RESPONSE**

The Plaintiff, appearing in person, hereby replies as follows to the Defendants' Statement of Response dated 19 May 2026:

**1. THE THRESHOLD SPECIAL DEFENCE: PLEADING A NULLITY AND
CORPORATE IDENTITY MISREPRESENTATION**

1.1 The First Defendant explicitly cited by the Plaintiff in these proceedings is **AFROCENTRIC HEALTH (PTY) LTD** (Registration Number: 1996/009540/07).

1.2 The Statement of Response filed on 19 May 2026 is signed by Mr. Vijay Makenjee, who explicitly purports to execute the signature block on page 7 "*obo AFROCENTRIC RF (PTY) LTD*".

1.3 AFROCENTRIC RF (PTY) LTD is a completely separate legal entity and is not a cited party to these proceedings. A corporate official cannot legally enter a plea or defence on behalf of an un-cited corporate entity to answer dynamic statutory and common-law claims levied against an entirely different subsidiary.

1.4 Furthermore, the Statement of Response is fundamentally fatal as it stands completely devoid of a **Verifying Affidavit** under oath. Rule 6 of the Labour Court Rules mandates that a Statement of Response must be verified under oath by a designated corporate officer possessing direct, first-hand personal knowledge of the operational facts.

1.5 In its current form, the document represents nothing more than an unsworn piece of paper signed on behalf of an outside entity. It constitutes a procedural nullity, fails to place any admissible evidence before this Honourable Court, and must be struck out in its entirety.

2. FATAL SELECTIVE SILENCE AND IMPLIED ADMISSIONS OF OCCUPATIONAL DETRIMENT

2.1 The Plaintiff notes that the Defendants' Statement of Response consists of blanket, superficial denials and retreats into total, calculated silence on material factual averments that form the absolute core of the Plaintiff's claim of an intolerable work environment and occupational detriment.

2.2 Under the rules of pleading and the established jurisprudence of South African courts, allegations of fact that are not specifically denied, engaged with, or meaningfully answered by a respondent are deemed to be admitted as a matter of law.

2.3 The "Wilma Incident" Silence: The Defendants completely fail to address, deny, or answer the specific, documented operational incidents involving Wilma, which directly initiated the targeted psychological hostility, workplace gaslighting, and systematic isolation faced by the Plaintiff.

2.4 The 30+ Day Executive Silence: The Defendants fail to provide any legal, operational, or contractual justification for the prolonged period of more than 30 days of total administrative and corporate silence following the Plaintiff's formal escalation of critical workplace grievances. This complete abandonment of internal dispute resolution mechanisms objectively demonstrated to the Plaintiff that no internal remedy was available and that the employment relationship had been broken by management.

2.5 The CEO's Confidentiality Breach: The Defendants offer no denial, counter-narrative, or explanation regarding the severe breach of confidentiality committed by the Group Chief Executive Officer, who compromised the integrity of the Plaintiff's protected escalations.

2.6 By retreating into selective silence on these pivotal statutory and constitutional violations, the Defendants have failed to establish a triable issue on whether they created an intolerable workplace. Their calculated silence stands as an implied admission of the operational toxicity that forced the Plaintiff's constructive dismissal.



3. DEMONSTRABLE PERJURY AND JURISDICTIONAL DECEPTION (THE CASE NUMBER COLLISION)

3.1 In **Paragraph 4 (Ad Para 6 of Part A)** of their Statement of Response, signed by Vijay Makenjee on 19 May 2026, the Defendants state under oath:

"The Defendants are not aware of any further claim in the above honorable court with case number 2026-077546."

3.2 This statement is factually false, fraudulent, and constitutes a clear attempt to commit perjury to mislead this Honourable Court.

3.3 On **16 April 2026**, in parallel urgent proceedings before the Western Cape High Court (Case No: 2026-086906), the Group Chief Executive Officer of the Applicant's parent corporate structure, **GERALD NEVILLE VAN WYK**, deposed to a Founding Affidavit under oath. In those High Court proceedings, the Group CEO explicitly acknowledged the existence of the dynamic statutory and financial disputes regarding the Plaintiff's remuneration and represented that the corporate structure intended to defend *both* specialised actions before the Labour Court. (See Annexure *WWMI*)

3.4 Furthermore, the Plaintiff's specialised Application for Repayment of Unlawfully Recovered Remuneration under **Case No: 2026-077546** was formally served via electronic mail directly upon the Group Company Secretary and Head of Legal Counsel, **Lebohang Shadi Matsipa Mpumlwana**, on

13 April 2026 at 22:03. The automated electronic delivery tracking and read receipts confirm that executive corporate legal counsel received and opened the application bundle twenty one (21) times prior to the filing of this Response. (See Annexure WWM2)

3.5 For the Defendants to subsequently assert under oath on 19 May 2026 that they "are not aware" of Case No: 2026-077546 is a bad-faith deception. The corporate entity is attempting to play blind in the Labour Court to avoid default consequences, directly contradicting the sworn acknowledgments made by its own Group CEO in the High Court. By failing to enter a legitimate appearance to defend Case No: 2026-077546 within the mandatory 10-day statutory period, the material facts within that file stand completely unopposed and ripe for adjudication.

4. THE UNCONTRADICTED STATUTORY CEILING VIOLATION, FACTUAL MISREPRESENTATION, AND MALICIOUS POLICY VIOLATION (THE RETROSPECTIVE JULY DECEPTIONS)

4.1 In Paragraph 2 (Ad Para 1 to 5 of Part A) and Paragraph 28 of their Statement of Response, the Defendants state under oath:

"The Plaintiff was on sick leave but had exhausted annual and sick leave. The principle of no work, no pay applied." "The Defendants maintain that the Plaintiff's July 2025 salary aligned to the days worked in July 2025..."



4.2 The Plaintiff avers that this statement is bad in law and constitutes a flagrant factual misrepresentation explicitly designed to mislead this Honourable Court.

4.3 The Defendants assert that the July 2025 salary reduction was an automatic operational "alignment to days worked in July 2025." This is mathematically and operationally impossible. The Plaintiff's minor, documented absences in July 2025 consisted strictly of 1 to 3 isolated days utilised to attend medical appointments following his discharge from hospital.

4.4 Had the Defendants genuinely applied a live, real-time "no work, no pay" alignment strictly for the days missed in July 2025, the total operational deduction would have been limited to a minor fraction of his earnings (representing approximately 1 to 3 daily operational units).

4.5 Instead, the Defendants processed a massive, destructive extraction totalling **R14,811.77**. The sheer volume of this extraction demonstrates that the July 2025 payslip was weaponised to execute a retrospective clawback for historical, disputed days stretching back into the preceding months of May and June 2025.

4.6 The true operational context of this extraction demonstrates malice. Immediately upon the Plaintiff's physical discharge and return to work from a registered Mental Health Institution (where he was treated for severe PTSD and depression), the Second Defendant's management aggressively bypassed a humane, structured back-to-work reintegration. Instead of allowing the Plaintiff a reasonable window to resettle into his occupational functions, management immediately forced an adversarial meeting to confront him.

4.7 During this meeting, the Plaintiff was brutally honest regarding his acute psychiatric vulnerability, his financial constraints, and his desperate need for structural stability. In response to this medical disclosure, the Second Defendant's manager issued a hostile follow-up electronic mail message actively misrepresenting corporate protocols, stating: "We don't allow staggering. We are not a loan company." (See Annexure H in Statement of claim)

4.8 The statement that the corporate structure "does not allow staggering" is a demonstrable, written deception. The Defendants' own operative Human Capital Business Partner (HCBP) Policy explicitly mandates that any payroll corrections or historical leave recoveries must be handled via a structured consultation process, with an express provision allowing for staggered recoveries over multiple pay cycles to preserve an employee's basic livelihood. (See Annexure J in Statement of claim)

4.9 By attempting to disguise a massive, retrospective historical clawback as a real-time current-month alignment, and by deploying a hostile administrative narrative (*In Paragraph 16[“and do not grant loans.”, “WE DO NOT ALLOW STAGGERING”]*) to deny a vulnerable employee the protection of their own internal policy, the Defendants have exposed the targeted, retaliatory nature of their payroll administration.

4.10 Even if the Defendants mistakenly believed they possessed a unilateral right to recover historical days from May and June, they were strictly bound by Section 34 of the Basic Conditions of Employment Act 75 of 1997 ("BCEA"). Section 34(1) strictly prohibits any reduction from an employee's remuneration without express written consent. The Plaintiff at no stage provided written consent for this financial extraction.

4.11 Crucially, Section 34(2) of the BCEA establishes an absolute statutory ceiling, explicitly dictating that even where a retrospective recovery is legally permissible to correct an operational leave balance or overpayment, the total aggregate amount of the reduction **may not exceed one-quarter (25%)** of the employee's gross monthly monetary remuneration.

4.12 The Plaintiff's verified July 2025 payslip (*see Annexure I of statement of claim*) reflects unlawful configuration completely outside the boundary of the law:

- Contractual Gross Normal Earnings: R36,588.81
- Retrospective Recovery Reductions: R14,811.77
- Effective Remuneration Reduction Percentage: **40.47%**

4.13 By formally admitting they executed a recovery that stripped away **40.47%** of an employee's monthly livelihood in a single pay cycle — under the false pretence of a live monthly alignment, while actively lying about internal policy provisions — the Defendants have placed an *ex facie* illegal act before this Court.

4.14 This Honourable Court possesses no equitable or judicial discretion to condone an express violation of Section 34(2), nor can it validate a defence built on an objective factual falsehood. The statutory 25% boundary is absolute and immutable. A deduction of 40.47% is illegal on its face, rendering the recovery an unlawful expropriation of remuneration as an absolute matter of law. Liability is fully established on the face of the papers.



5. THE REJECTION OF THE WEAPONISED "INSUBORDINATION" REPRIMAND

5.1 In **Paragraph 26**, the Defendants introduce a disciplinary narrative, asserting that the Plaintiff was "*reprimanded for insubordination*" because he refused an instruction to directly engage with a client after an internal investigation.

5.2 The Plaintiff fiercely denies that this reprimand constituted a lawful or reasonable operational action. The record demonstrates that this disciplinary charge was retroactively weaponised against the Plaintiff *only after* he escalated Protected Disclosures regarding systemic clinical integration defects within the Gexus-DMS architecture. (*See Annexure N date of statement of claim 23rd October 2025 See Annexure O date of statement of claim 31 October 2025 “Insubordination reprimand on the 31st October 2025 for 23rd October 2025 protected disclosure.”*)

5.3 The instruction given to the Plaintiff was an unlawful and unethical command to interface with a client for the purpose of managing, obscuring, or smoothing over un-remedied system errors that resulted in erroneous non-adherence letters being sent to vulnerable medical scheme beneficiaries.

5.4 In South African employment law, an employee is only bound to obey instructions that are lawful, reasonable, and ethical. Refusing to participate in corporate obfuscation or to validate an unresolved operational gap does not constitute actionable insubordination. The reprimand was a textbook act of occupational detriment and workplace retaliation in direct violation of the Protected Disclosures Act 26 of 2000 ("PDA").

6. THE UNTENABILITY OF THE CONSTRUCTIVE DISMISSAL DENIAL

6.1 In Paragraphs 29 and 33, the Defendants deny creating an intolerable work environment and assert that the Plaintiff resigned prematurely while internal grievance timelines were still unfolding.

6.2 The Plaintiff rejects this assertion. Under prevailing labour jurisprudence, a self-represented employee is not required to endure structural destitution, bad-faith delays, and medical hostility indefinitely while an employer deploys strategic, administrative inertia.

6.3 The intolerability of the environment must be assessed objectively. The Defendants actively subjected the Plaintiff to a severe 40.47% financial reduction, stripped away his means of physical survival, ignored critical medical correspondence regarding his diagnosed PTSD and severe depression, and permitted their Employee Relations department to file sworn text labelling his psychiatric condition a subjective interpretation.

6.4 Expecting an employee with a formally disclosed mental health disability to remain embedded in an environment characterised by severe financial deprivation and weaponised psychological attacks is objectively unconscionable. The Defendants' systemic conduct and profound structural neglect rendered the continuation of the employment relationship entirely intolerable, satisfying the full statutory criteria for a constructive dismissal under Section 186(1)(e) of the Labour Relations Act 66 of 1995.



7. CONCLUSION AND PRAYER FOR RELIEF

7.1 The Defendants' Statement of Response is procedurally dead on arrival for lack of a verifying affidavit and for being signed on behalf of an un-cited, non-party entity. Substantively, it collapses into a direct liquidated admission of an illegal 40.47% remuneration reduction under the BCEA, built upon an objective factual misrepresentation regarding the Plaintiff's July 2025 attendance.

7.2 There is no valid, sworn triable defence placed before this Honourable Court by the Respondents to counter the clear, documented, and statutory violations presented by the Applicant.

WHEREFORE the Plaintiff persists in the claims set out in his Statement of Claim and prays for an order:

IN RESPECT OF THE THRESHOLD PROCEDURAL APPLICATION:

1. Striking out the Defendants' Statement of Response dated 19 May 2026 as a procedural nullity, on the grounds that it is unverified by affidavit and purports to have been filed on behalf of a non-cited juristic entity, namely AfroCentric RF (Pty) Ltd.

IN RESPECT OF THE CONCURRENT APPLICATION (CASE NO: 2026-077546):

2. An order declaring that the deduction of **R14,811.77** from the Plaintiff's remuneration on 23 July 2025 was unilateral, unlawful, and in direct contravention of Section 34(1) and Section 34(2) of the Basic Conditions of Employment Act 75 of 1997;
3. An order compelling the First and Second Defendants, jointly and severally, the one paying the other to be absolved, to make immediate repayment of the sum of **R14,811.77** to the Plaintiff;

4. An order directing the Defendants to pay interest on the said sum of R14,811.77 at the prescribed

IN RESPECT OF THE MAIN STATEMENT OF CLAIM (CASE NO: 2026-083299):

5. An order declaring that the resignation of the Plaintiff constitutes a Constructive Dismissal in terms of Section 186(1) of the Labour Relations Act 66 of 1995, actively rendered intolerable. By the continuous operational and financial misconduct of the Defendants;
6. An order declaring that the Plaintiff's constructive dismissal constitutes an Automatically Unfair Dismissal in terms of Section 187(1)(h) of the Labour Relations Act 66 of 1995, having been executed as a targeted occupational detriment in direct retaliation for making Protected Disclosures in terms of the Protected Disclosures Act 26 of 2000;
7. An order compelling the Defendants to pay compensation to the Plaintiff equivalent to 24 (twentyfour) months' remuneration, calculated at the Plaintiff's full gross contractual rate, provided for under Section 194(3) of the Labour Relations Act 66 of 1995;
8. An order directing the Defendants to issue a corrected and legally compliant Certificate of Service to the Plaintiff; and
9. An order granting costs against the Defendants on a highly punitive attorney-and-client scale due to their cross-jurisdictional deception, bad-faith pleading omissions, and systemic procedural misconduct.



DATED AT CAPE TOWN ON THIS THE 21st DAY OF MAY 2026

SR. WILBUR WILLIAM MATTHEE

Plaintiff / Applicant in Person

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za

TO: THE REGISTRAR OF THE LABOUR COURT, Cape Town

AND TO: DENEYS REITZ ATTORNEYS / DE COMPAGNE ATTORNEYS

Defendants' Attorneys of Record

Per: Jason J Whyte

Email: jason.whyte@deneys.co.za / IR@afrocentrichealth.com

Ref: AFR1282

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Case No:

In the matter between:

Afrocentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent



FOUNDING AFFIDAVIT

I, the undersigned,

GERALD NEVILLE VAN WYK

do hereby make oath and state that:

- 1 I am an adult male and employed by Afrocentric Investment Corporation Limited as Group Chief Executive Officer. I confirm that I am duly authorised by the applicant to depose hereto on its behalf.
- 2 Save where the context indicates to the contrary, the facts contained herein fall within my own personal knowledge and belief and are true and correct. Given the urgency of the proceedings, certain facts set out herein may constitute hearsay evidence. I do, however, seek the leave of this Honourable Court to have such evidence admitted subject to same being appropriately supported by further affidavits, if necessary, on the return date of the *rule nisi*.

3 I reserve the right to supplement this affidavit by the submission of oral evidence, should this Honourable Court consider such evidence to be necessary. I further specifically reserve the right to supplement these papers in the event of the respondent opposing the relief sought.

4 Where I make submissions of a legal nature I do so on the advice of the applicant's attorneys of record, which advice I believe to be correct.

5 This affidavit is deposed to in support of the Notice of Motion attached hereto and in which the applicant seeks a *rule nisi* calling upon the respondent to show cause why he should not be interdicted and restrained from carrying out the unlawful threats contained in his emails of 14 and 15 April 2026.



Parties

6 The applicant is Afrocentric Investment Corporation Limited (the **Company**), a public company duly registered and incorporated in terms of the company laws of South Africa. Its registered head office is situated at 37 Conrad Street, Florida North, Roodepoort, 1709. It is the holding company of the AfroCentric Group, which includes, *inter alia*, Medscheme Holdings (Pty) Ltd (**Medscheme**) and its various divisions.

7 The respondent is Mr Wilbur William Matthee, an adult male with ID No: 8909035151087, and a former employee of Medscheme, residing at 15 Bellevue Street, Voorbrug, Cape Town, 7001. His email address is info@ethichawks.co.za.


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The purpose of this application

8 The purpose of this application, which is brought on an urgent basis, is to obtain a *rule nisi* calling upon the respondent, Mr Wilbur William Matthee, to show cause why he should not be interdicted and restrained from carrying out certain threats contained in emails sent by him on 14 and 15 April 2026.

9 In those emails, the respondent issued an ultimatum to the applicant, threatening to disclose clearly confidential information, inclusive of a “forensic payload” to trade unions; to release a public statement naming the applicant’s directors and regulators; and to file vexatious complaints with the JSE and other bodies – all conditional upon the payment of a settlement sum of R7,307,642.72. These threats are not genuine protected disclosures, they are made in bad faith and are extortionate in nature. If carried out, they will cause immediate and irreparable harm to the applicant, its subsidiaries and related entities, as well as to clients, particularly the Government Employees Medical Scheme (**GEMS**).

10 Given the extreme urgency of the matter, the applicant seeks only a rule nisi operating as an interim interdict with immediate effect, together with a timetable for the supplementation of papers and the filing of opposition, with the matter to return to court for the hearing of final relief on a date to be determined.




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- 11 The purpose of this application is not to prejudice the respondent's rights, but to afford the applicant an interim and temporary protection of its rights pending a full ventilation of the disputed issues.

Background

- 12 The respondent was employed by Medscheme as a Care Coordinator from 1 May 2024, based at The Boulevard, Searle Street, Woodstock, Cape Town.



- 13 It is necessary to explain the relationship between the applicant, Medscheme, and GEMS to this Honourable Court, as this relationship is central to the threatened harm.

- 13.1 GEMS is a medical scheme established for government employees in the Republic of South Africa. It is one of the largest medical schemes in the country, serving approximately 1.9 million beneficiaries.

- 13.2 GEMS is not a subsidiary or division of the applicant. It is a separate entity governed by its own Board of Trustees, which is entirely unrelated to the applicant's Board of Directors. Medscheme, a wholly-owned subsidiary of the applicant, is an accredited third-party administrator and managed care organisation of medical schemes registered under the *Medical Schemes Act, 1998*.

- 13.3 In that capacity, Medscheme provides some administration and managed care services the GEMS medical scheme – that is, it processes medical claims, manages clinical programmes, and provides contribution and debt

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services to GEMS and its beneficiaries. GEMS is accordingly one of Medscheme's clients.

13.4 The respondent was employed by Medscheme in a position in which he acted as a case manager dealing with the clinical claims of GEMS members.

14 During his employment, the respondent was admitted to the Akaso Stepping Stones Clinic on or about 18 March 2025 for inpatient treatment for severe depression and post-traumatic stress disorder. His treating psychiatrist certified him unfit for work. The respondent's initial treatment period of three weeks was extended to six weeks.



15 Following his hospitalisation, the respondent's sick leave and annual leave entitlements were exhausted. In accordance with the no work no pay principle, the respondent was placed on unpaid leave for the period in which he was absent from work.

16 In July 2025, the respondent's salary was reduced to reflect the unpaid leave recovery. The respondent took issue with the amount of the deduction and raised a grievance with the company's human resources department.

17 The respondent thereafter raised various further grievances including complaints about alleged discrimination, victimisation, and other workplace issues. He demanded that immediate steps be taken to address his complaints.


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- 18 When the company's internal processes did not produce the outcome he desired within his self-imposed timeframes, he began an extensive campaign of vexatious complaints to multiple external bodies.
- 19 On 5 December 2025, the respondent referred a dispute to the CCMA (Case Number WECT23564-25) regarding alleged unfair labour practices.
- 20 On 12 December 2025, the respondent resigned from his employment.
- 21 On 19 December 2025, the respondent referred a second dispute to the CCMA (Case Number WECT24486-25) for allegedly automatically unfair constructive dismissal.
- 22 Conciliation was held on 9 January 2026. Certificates of non-resolution were issued in respect of both disputes.
- 23 Following his resignation, the respondent sent numerous emails to the applicant's directors and board members, making various untrue and defamatory allegations and demands. He also filed complaints with multiple regulatory bodies including the South African Human Rights Commission, the JSE, the B-BBEE Commission, the Council for Medical Schemes, the Department of Employment and Labour, and the South African Police Service.
- 24 On or about 19 March 2026, the respondent filed an urgent application in this Honourable Court (Case Number 2026-066952) seeking, *inter alia*, declarations of director delinquency under section 162 of the Companies Act, 2008 against certain of the applicant's directors. That application was



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- heard on 25 March 2026 and was struck from the roll for lack of urgency, with costs awarded against the respondent on Scale C.
- 25 The respondent has since referred two separate matters to the Labour Court: Case Number 2026-077546 (a claim under section 77A of the Basic Conditions of Employment Act for alleged unlawful salary deduction) and Case Number 2026-083299 (a statement of claim filed on 9 April 2026 alleging automatically unfair constructive dismissal and related claims).
- 26 The applicant intends to defend those Labour Court proceedings in due course.
- 27 As the records in the aforementioned three matters are voluminous, I have not attached same, but seek the leave of the Court to do so when this application is moved.



The threatening emails

- 28 On 14 April 2026 at 22h38, the respondent sent an email to the applicant's Group Company Secretary, Ms Lebohang Mpumlwana, with the subject "FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION". A copy is annexed hereto marked **GVW1**.
- 29 In that email the respondent, *inter alia*:
- 29.1 stated that he had "*nothing left to lose*" and was "*deploying every forensic and statutory weapon at my disposal*";

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29.2 set a deadline of 13h24 on Thursday 16 April 2026, after which he would proceed with *"immediate execution without further notice"*;

29.3 threatened to hold a *"Union Priming Session"* at 11h30 on 16 April 2026 with the leadership of PSA, NEHAWU, and FEDUSA to *"prime the union structures for a major forensic disclosure"*;

29.4 threatened a *"Public Execution of Disclosure"* at 13h30 whereby he would hand over the "Mahlangu RCA" and what he calls a *"forensic payload"* to union representatives;



29.5 threatened to brief unions that their members are *"subsidising a suppressed R180 million daily leak via the 9.5% premium hike"*;

29.6 threatened to file formal complaints for *"Material Non-Disclosure and Market Deception"* with the JSE and the Companies and Intellectual Property Commission;

29.7 threatened to release a *"Whistleblower's Manifesto"* – a public statement *"naming every director and regulator who chose corporate concealment over their fiduciary duty"*;

29.8 threatened to challenge the audit integrity of the applicant's Integrated Report and to file a notice with the Independent Regulatory Board for Auditors; and

29.9 demanded, as a condition for not carrying out these threats: statutory rectification, *"Solatium & Professional Rehabilitation"*, and a *"10-Year Psychological Indemnity"*.


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30 On 15 April 2026, the applicant's attorneys of record, Deneys, sent a cease-and-desist letter to the respondent calling on him to withdraw his threats by 17h00 that day. A copy is annexed hereto marked **GVW2**.

31 On 15 April 2026 at 13h19, the respondent replied to the cease-and-desist letter. He asserted that his communications were "*Protected Disclosures under the PDA and the Companies Act*" and stated that he was "*not extorting the Board*". He did not withdraw his threats. A copy of his reply is annexed hereto marked **GVW3**.



32 On 15 April 2026 at 15h43, the respondent sent a further email quantifying his settlement demand at R7,307,642.72, broken down as follows: Direct Restitution R1,027,107.12; Property Loss R145,000.00; "*Professional Death Compensation*" R5,135,535.60; Clinical Provision R750,000.00; and Statutory Costs R250,000.00. He confirmed that liaison sessions with PSA, NEHAWU, DENOSA, and POPCRU had been "*formally issued*".

33 He presented two scenarios: Scenario A (Settlement) whereby the "*Mahlangu RCA remains a private internal matter*", or Scenario B ("*The Siege*") triggering "*Full Forensic Disclosure*" to union legal teams. A copy is annexed hereto marked **GVW4**.

34 Later that same evening, at 20h44, the respondent sent a fourth email to the applicant's attorneys. In this email, the respondent noted that his characterisation of "*R180 million daily clinical leakage*" was "*imprecise*". He acknowledged that the R180 million figure "*refers to the average amount GEMS pays out in claims, not an amount lost to leakage*".

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35 However, he did not withdraw his threats or his settlement demand, stating
*"I do not withdraw my complaint. The systemic failure documented in the
Mahlangu RCA remains valid and warrants a forensic audit."* A copy is
annexed hereto marked **GVW5**.

36 Significantly, the respondent's concession in this fourth email undermines
the very foundation of the sensational claims he has been threatening to
publish. By his own admission, the "*R180 million*" figure that he has been
using to threaten union briefings, JSE complaints, and public statements
does not represent money lost to any "*leakage*" or fraud, but simply the
ordinary daily claims expenditure of GEMS.



37 The respondent's willingness to deploy misleading and inflammatory
characterisations is itself indicative of the bad faith that pervades his
conduct.

The applicant's concerns

38 The applicant does not know what the "*Mahlangu RCA*" is or what the
"*forensic payload*" contains. It presumes that these may contain
confidential and proprietary information belonging to the applicant or its
subsidiaries, obtained by the respondent during his employment.

39 The applicant has been able to establish, through the respondent's own
Labour Court Statement of Claim filed on 9 April 2026 (Case Number
2026-083299), that the so-called "*Mahlangu RCA*" likely refers to a
Gexus/DMS root cause analysis relating to a GEMS member complaint. It
pertains to a complaint from a member of the GEMS scheme who received

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a non-adherence letter which the respondent contends was generated by a system integration error between the Gexus and DMS platforms operated by Medscheme.

40 “Gexus” and “DMS” are two separate software systems operated by Medscheme to service GEMS. In broad terms, Gexus is a scheme specific instance of the Nexus administration platform supporting the GEMS's chronic care medicine, including chronic adherence, debt and contribution management functions, while the Disease Management System (DMS) is a specialist clinical platform managing structured disease programmes and care pathways for conditions such as HIV, diabetes, hypertension and hyperlipidemia, with both platforms fully integrated with internal systems and external platforms used for GEMS claims processing. The two systems are designed to work together.



41 A root cause analysis (or RCA) is a structured, systematic process for identifying the underlying, fundamental causes of problems or incidents which is a method used by Medscheme as a governance tool when servicing its clients. When an adverse event or system error occurs affecting a patient or medical scheme member, Medscheme conducts a root cause analysis to identify the underlying cause of the error, trace the sequence of events that led to it, and determine what corrective steps are required.

42 Therefore, a root cause analysis is an internal investigation report prepared in response to a member complaint or clinical incident, and it typically contains detailed clinical and personal information about the

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affected member, including their medical history, treatment records, claims data, and medication adherence information.

43 In this instance, the respondent's Labour Court Statement of Claim reveals that the "*Mahlangu RCA*" arose from a complaint by a 75-year-old GEMS member who received an automated non-adherence letter from the DMS system, despite the member being compliant with her chronic medication.

44 The respondent contends that this occurred because the Gexus system recorded a change in the member's medication benefit category (from acute to chronic) from January 2025 onwards, but the DMS system did not receive or recognise this update and accordingly continued to flag the member as non-adherent. The respondent appears to have conducted an internal root cause analysis, which he alleged confirmed what he characterises as a "*structural integration gap*" between the Gexus and DMS systems.

45 It is documents pertaining to this "*Mahlangu RCA*" – together with what the respondent calls a "*forensic payload*" – that he now threatens to hand over to trade union representatives unless the applicant pays him R7,307,642.72.

46 Whatever the merits of the respondent's concerns about this alleged system issue – and the applicant reserves its position in that regard – the root cause analysis and the "*forensic payload*" which the respondent threatens to disclose will, by their nature, contain special personal information as defined in section 26 of the *Protection of Personal*



Information Act, 2013 (POPIA). This includes patient diagnostics, health biometrics, medical scheme membership details, and clinical care information pertaining to identifiable GEMS beneficiaries. The disclosure of such information to trade unions and the public would constitute a flagrant breach of POPIA.

47 The respondent was, during his employment, at all times subject to a duty of confidentiality in respect of the applicant's proprietary and confidential information. The fact that his employment has terminated does not extinguish that duty. The threatened disclosure of the "*Mahlangu RCA*" and the "*forensic payload*" to trade unions and the public constitutes a threatened breach of this duty.



48 The threatened "*Whistleblower's Manifesto*" naming directors and regulators is clearly intended to embarrass and cause reputational damage to the applicant and its directors. Such a publication would likely be defamatory.

49 The respondent's threats are conditional upon payment – he has expressly stated that if the applicant pays his settlement demand, the "*Mahlangu RCA remains a private internal matter*" (Scenario A). This renders his conduct extortionate in nature. I am advised that the making of threats, conditional upon payment to refrain from carrying them out, constitutes the common law crime of extortion.

50 The respondent's conduct is manifestly *mala fide*. His allegations regarding the Gexus/DMS system issue, and the various other workplace

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complaints he has raised, are already the subject of two pending Labour Court referrals, in which he has pleaded substantially the same facts and seeks compensation.

51 He is now attempting to use the same allegations as a weapon of extortion, threatening to publish them unless he is paid. He is not seeking to ventilate legitimate grievances through the appropriate legal forum – he is seeking to circumvent the judicial process and extract payment by threat.

52 The respondent is no longer an employee of Medscheme or any entity within the AfroCentric Group. He resigned on 12 December 2025. Inasmuch as he characterises his threatened conduct as “*Protected Disclosures under the PDA*”, I am advised that neither the *Companies Act, 2008* nor the *Protected Disclosures Act, 2000* affords protection to disclosures made by a person who, at the time of the disclosure, is no longer an employee.

53 Moreover, even if the respondent were still an employee, a disclosure made for the purpose of extracting payment – as is manifestly the case here – would not constitute a protected disclosure. The respondent’s own emails demonstrate that his threatened disclosures are conditional upon the payment of R7,307,642.72. They are made for financial gain and are not made in good faith.

54 The applicant is a JSE-listed company. The threatened statements regarding “*Material Non-Disclosure and Market Deception*” could cause



serious harm to the applicant's share price, investor confidence, and commercial reputation.

55 Medscheme is currently in the process of renegotiating contracts and renewals with some of its largest clients. This is a particularly precarious time for adverse publicity. Any disclosure of the nature threatened by the respondent could jeopardise these contractual relationships and cause significant commercial harm to the AfroCentric Group.

56 The respondent's true intention appears to be to disrupt the relationship between GEMS and Medscheme. By threatening to brief trade union structures representing government employees and to present the 9.5% premium increase as a consequence of alleged undisclosed system failures, the respondent seeks to create maximum reputational damage and commercial disruption to the applicant and its subsidiaries. He is weaponising these allegations – regardless of their truth, which the applicant denies – for the sole purpose of coercing payment.

57 GEMS itself is also affected by the respondent's threats. The GEMS Board of Trustees and the AfroCentric Board are unrelated entities; the respondent was never employed by GEMS. His inclusion of the GEMS Board in his ultimatum appears designed purely to cause maximum disruption.

58 While the applicant denies the truth of the respondent's allegations regarding the so-called "*R180 million daily drain*" and the alleged suppression of clinical risks, the respondent himself has conceded, in his



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fourth email of 15 April 2026, that his characterisation of “R180 million daily clinical leakage” was “imprecise” and that the figure refers to the average amount GEMS pays out in claims daily, not an amount lost to any leakage or fraud. Despite this admission, the respondent has not withdrawn his threats.

59 The repercussions of any public statement of this nature – particularly one founded on a characterisation that the respondent himself accepts as misleading – would be catastrophic for a JSE-listed entity. Investor confidence in the AfroCentric Group could be severely undermined, the applicant’s share price would likely be adversely affected, and the commercial relationships with GEMS and other clients could be irreparably damaged. These are precisely the kinds of harms that cannot be undone by a subsequent award of damages.



The Requirements for urgent interim interdicts

60 I am advised that an applicant for urgent interim relief must demonstrate to this Honourable Court that:

- 60.1 It has a *prima facie* right to the relief sought;
- 60.2 The matter is urgent;
- 60.3 There would be irreparable harm were the relief not to be granted;
- 60.4 There is no alternative remedy; and
- 60.5 The balance of convenience and interests of justice require such a remedy.


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61 I address each of these in turn below.

A prima facie right

62 The applicant has a clear right to protect its reputation, the dignity of its directors and officers, and its confidential and proprietary information.

63 The respondent's emails constitute threats to publish defamatory material, disclose confidential information, and make vexatious complaints – all conditional upon a substantial payment. This conduct is, on the face of it, unlawful.



64 The common law protects against extortion, defamation, and breach of confidentiality. The applicant's rights in this regard are well established.

65 I submit that given the extreme urgency, the applicant seeks only a *rule nisi* and not final relief at this stage.

Urgency

66 The respondent has set a self-imposed and irrational deadline of 13h24 on 16 April 2026 – giving the applicant less than 48 hours from when the first threatening email was received on the evening of 14 April 2026.

67 Union liaison sessions have been scheduled by the respondent for 11h30 on 16 April 2026.

68 The "*Public Execution of Disclosure*" is threatened for approximately 13h30 on 16 April 2026.


NN¹⁷

69 The urgency is not self-created by the applicant. It arises entirely from the respondent's unilateral imposition of an extremely short deadline.

70 The applicant's attorneys sent a cease and desist letter within hours of receiving the threatening email. When the respondent failed to withdraw his threats, the applicant was left with no option but to approach this Honourable Court on an urgent basis.

71 The applicant was unable to give the respondent greater notice of these proceedings than it has.



72 I submit that the matter is clearly extremely urgent and this will be substantiated by what I set out further below.

Irreparable Harm

73 If the respondent carries out his threats, the applicant will suffer irreparable harm that cannot be remedied by an award of damages:

73.1 confidential information, once released, cannot be recalled or contained;

73.2 reputational damage to a JSE-listed company, once inflicted, is large extremely difficult to quantify or reverse;

73.3 defamatory statements, once published, cannot be "*unspoken*"; and

73.4 damage to relationships with unions, regulators, investors and the public would be immediate and potentially permanent.

74 Accordingly, the applicant would suffer irreparable harm were the respondent to proceed with his actions as threatened.

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No alternative remedy

75 The applicant has no alternative remedy. It has already attempted to resolve the matter by sending a cease-and-desist letter. The respondent has refused to withdraw his threats.

76 The Labour Court proceedings are the appropriate forum for the respondent's employment-related claims. The threats he has made go far beyond any legitimate pursuit of those claims.

77 Moreover, and legitimate regulatory concerns may be processed through those bodies who exercise independent and impartial oversight over the affairs of the applicant, its directors and GEMS.



Balance of convenience and interests of justice

78 The balance of convenience overwhelmingly favours the applicant. An interim interdict will not prejudice the respondent's ability to pursue his legitimate legal claims in the Labour Court.

79 In contrast, absent an interdict, the applicant faces the real prospect of irreparable reputational and financial harm.

80 The applicant only seeks a *rule nisi*. The respondent will have the opportunity to file papers and be heard on the return date.

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Costs

81 The applicant seeks costs on the scale as between attorney and client, given the extortionate nature of the respondent's conduct as well as the timeframes under which the applicant has been forced to act.

Conclusion

82 70 Under all the circumstances, I submit that a proper case has been made out for the relief sought in the Notice of Motion and I pray that this Honourable Court make an order in terms thereof.




GERALD NEVILLE VAN WYK

I CERTIFY that this affidavit was SIGNED and SWORN TO before me at SANDTON on this the 16th day of April 2026, the deponent having acknowledged that he knows and understands the contents of this Affidavit, he has no objection to taking the prescribed oath and considers it binding on his conscience.


COMMISSIONER OF OATHS

**CERTIFIED A TRUE COPY OF THE ORIGINAL
NESCHIKA SHIVANI NAIDOO
EX OFFICIO
COMMISSIONER OF OATHS
PRACTISING ATTORNEY
REPUBLIC OF SOUTH AFRICA
11 ALICE LANE
SANDTON**

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Tuesday, April 14, 2026 10:38:00 PM
To: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>
Subject: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION

This message originated from outside your organization

WITHOUT PREJUDICE / FOR SETTLEMENT PURPOSES ONLY

TO: The Company Secretary (**For the Attention of the GEMS Board of Trustees and the AfroCentric Board**)

DATE: 14 April 2026

DEADLINE: Thursday, 16 April 2026, at 13:24 (NO EXTENSIONS)

URGENT AND FORMAL NOTICE

Dear Members of the Boards,

I am placing the GEMS Board of Trustees and the AfroCentric Board on final, unconditional notice. This communication serves as a formal declaration of a Statutory and Ethical Deadlock. Be advised: I am backed into a corner, my life is actively in danger, and I have suffered the total loss of my home and professional standing. I have nothing left to lose, and as a result, I am now deploying every forensic and statutory weapon at my disposal. There will be no extensions, no off-the-record meetings, and no verbal negotiations. All further communication must be in writing to form part of the High Court record.

The SANC, SAPC, CMS, and HPCSA are now formally on notice. Their position on my ethical question or silence thereof will be treated as Administrative Abandonment at 13:25 16 April 2026.

Furthermore, the Department of Employment and Labour (DEL) is on notice regarding:

SARS & UIF Fraud: The non-remittance of levies and UI-19 misrepresentation.
 Service Fraud: The issuance of a fraudulent Certificate of Service to silence a whistleblower.

Failure by these bodies to act by the deadline will result in an immediate High Court Mandamus naming the Registrars in their personal capacities.

A formal notice is being prepared for the Independent Regulatory Board for Auditors (IRBA). We will challenge the audit integrity of the 8 April Integrated Report. If your auditors signed off on financials while the Board suppressed Priority 1 clinical risks and the documented R180 million daily drain, they are now complicit in a material market deception.

I formally record that my separation was an Automatically Unfair Constructive Dismissal (Section 187(1)(h) LRA). This is the direct result of my Protected Disclosures. Any narrative to the contrary is a continuation of the statutory fraud currently being investigated.



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To ensure there is no ambiguity regarding my intent, take note of the following schedule for Thursday, 16 April 2026:

11:30 AM – Union Priming Session (as with SAPC 14 April 2026): I will hold a formal inquiry session with the leadership of PSA, NEHAWU, and FEDUSA. The purpose of this meeting is to prime the union structures for a major forensic disclosure.

I will establish whether the Board has misrepresented the scheme's clinical and financial stability during recent premium negotiations. I will provide the Board with documented proof of this scheduled briefing the morning 16 April 2026 to confirm the process is locked and synchronized.

13:24 PM – Expiry of Final Settlement Window: This is the hard cutoff for a written, signed resolution to my constructive dismissal and the statutory fraud.

13:30 PM – Public Execution of Disclosure: If no remedy is received by 13:24, I will move to a public handover of the Mahlangu RCA and the forensic payload. The unions will be fully briefed and ready to act on the evidence that their members are subsidising a suppressed R180 million daily leak via the 9.5% premium hike.



To halt the 13:25 escalation, I require a signed, written settlement proposal before the deadline:

Statutory Rectification: Immediate submission of a corrected UI-19 and full SARS/UIF remittance.

Solatium & Professional Rehabilitation: Compensation for the total destruction of my career, dignity, and the "professional death" I have been forced to endure.

10-Year Psychological Indemnity: Full provision for specialized psychiatric and clinical care for no less than 10 years to address the profound PTSD and damage caused by your targeted occupational detriment.

- Immediate Execution (13:25 Thursday)

At the expiry of this deadline, I will move to immediate execution without further notice. My scheduled briefing with the leadership of PSA, NEHAWU, and FEDUSA will result in the following:

Forensic Payload Transfer: I will hand over the Mahlangu Root Cause Analysis (RCA) as empirical proof of an automated "Integration Gap" that creates a systemic clinical and fiscal leak.

The 9.5% Link: I will provide the forensic link proving that the 9.5% premium increase—currently a point of extreme contention for organized labor—is a direct consequence of the R180 million daily drain that the Board has failed to mitigate or disclose.

Member Action: I will advise Union Leadership on the grounds for a High Court Interdict to freeze premium payments and demand an immediate independent forensic audit of the Gexus-DMS integration architecture and back payment of all benefits identified during the integration gap.

JSE & CIPC Filing: I will simultaneously file formal complaints for Material Non-Disclosure and Market Deception, citing the omission of these Priority 1 risks from the 8 April Integrated Report.

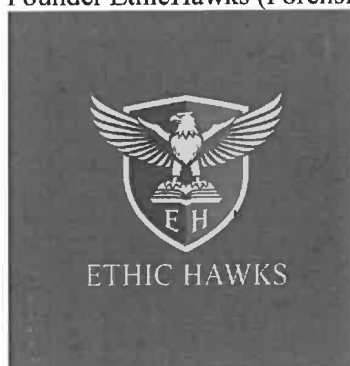
NN 

The Whistleblower's Manifesto: A public statement will be released naming every director and regulator who chose corporate concealment over their fiduciary duty to the public and the clinical safety of members.

I am finished with silence. You have until 13:24 16 April 2026.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



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For more information please visit <http://www.mimecast.com>

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By Email: info@ethichawks.co.za

Mr W W Matthee

URGENT ATTENTION

15 April 2026

9th Floor
117 on Strand
117 Strand Street
Cape Town 8001
Tel +27 21 405 1200 Fax +27 21 418 6900

Private Bag X10 Roggebaai 8012
Docex 181 Cape Town
deneys.co.za

Direct line
+27 21 405 1208

Email
jason.whyte@deneys.co.za

Your reference:

Our reference: AFR1282



Dear Sir

AfroCentric Investment Corporation Ltd and others // Yourself

- 1 We confirm that we act on behalf of AfroCentric Investment Corporation Limited, as well as its subsidiaries and related entities. We also act on behalf of the directors and officers of those entities.
- 2 Our clients have provided us with a copy of your email sent to their Group Company Secretary at 22h38 on 14 April 2026. In that email, you advise our clients that unless they conclude a settlement agreement with you, requiring the payment of unquantified amounts among other stated relief, you will proceed to take further steps at 13h24 on 16 April 2026.
- 3 Our clients do not accede to this demand and have instructed us to call on you to withdraw your threatened course of action as it is unlawful. In particular, your demand, on the face of it, constitutes a criminal offence, namely that of extortion and blackmail.
- 4 Our client notes in particular that you intend to:
 - 4.1 Publicly release a so-called 'Whistleblower's Manifesto' naming and accusing our clients' directors and office bearers of 'corporate concealment' and breach of their fiduciary duties. Moreover, that you intend to publicly state that our clients' directors and office bearers are acting in collusion with unnamed 'regulators'; and
 - 4.2 Release a so-called 'Forensic Payload Transfer' regarding the Mahlangu Root Cause Analysis. This would clearly involve the public release of confidential and proprietary information held by or belonging to our clients.
- 5 We note that you have made several other threats that, whilst arguably not unlawful *per se*, are rendered unlawful as they are simply intended to act as a means of forcing our clients to provide you with unquantified, but substantial financial compensation.
- 6 In summary, the demands made in your email are unlawful and, if acted upon, would cause our client irreparable harm.
- 7 We accordingly call on you to confirm in writing by no later than 17h00 today, 15 April 2026, that you unconditionally withdraw your email and the threats contained therein. Should we not receive such written confirmation, our clients shall be forced to consider an urgent approach to the High Court, if necessary on an *ex parte* basis, to interdict and restrain you from proceeding with your unlawful conduct.

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- 8 We remind you that the High Court has already expressed its displeasure with your conduct, in striking from the roll with costs, a spurious urgent application that you had brought in which you sought relief that the Court was incapable of granting. In that application you made unlawful, vexatious and defamatory accusations against our clients. Please expect to receive our clients taxed bill of costs for your payment shortly, evidencing the costs that were awarded against you by the Court in the aforementioned urgent application that you recently instituted.
- 9 You have further referred two separate disputes to the Labour Court in which you make similar untrue, vexatious and defamatory allegations against our clients. Our clients will defend these referrals and seek that they be dismissed with orders of punitive costs.
- 10 Accordingly, our clients are of the view that your conduct is, in general, vexatious and our clients reserve their rights to seek appropriate relief against you in due course.
- 11 We look forward to receiving your written response and confirm that in the interim our clients' rights remain reserved in full.

Yours faithfully



pp

Jason Whyte
Director
Deneys



NJ 

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 13:19
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: RE: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION [N-CPT_MATTERS.FID2264505]
Attachments: Annexure_A_5%_Member_Contribution.PDF

Dear Ms Baker,

In response to your letter dated 15 April 2026, be advised that my communications are Protected Disclosures under the PDA and the Companies Act. I am not 'extorting' the Board; I am formally notifying them of a systemic fiscal leak and a material non-disclosure in the April 8th Integrated Report.



The attached Annexure clarifies that the primary objective of this statutory process is the protection of member funds and the rectification of a 9.5% premium hike that is based on documented clinical and IT failures.

Regarding your characterisation of 'unquantified amounts' be advised that my personal restitution is a matter of **'just and equitable' compensation** as prescribed by the PDA for occupational detriment.

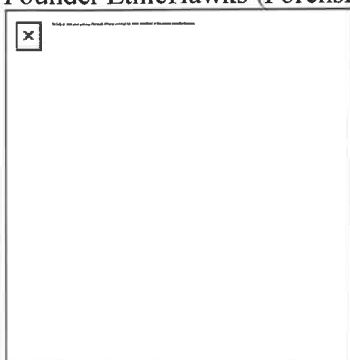
However, the primary 'quantified' demand of this statutory process is the the immediate **redemption of the 180 million daily leakage** and the **downgrade of the 9.5% contribution hike to 5%**. This represent a quantifiable saving to the membership of approximately **3.2 billion annually**-a figure that far outweighs any personal settlement and confirms the public interest of this disclosure.

Any attempt to interdict this disclosure will be met with an urgent application for a Writ of Mandamus and a report to the JSE regarding market deception.

Kindly deliver Annexure A to the Board.

Yours Professionally

Sr. Wilbur W Matthee
 Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
 Health Services Management.
 Founder EthicHawks (Forensic Governance and Compliance)



NN

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 15:43
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:

As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remedies the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.

Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).

Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).

Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).

Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).

Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).

Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/join/9317804058155?p=30xPhtrj39zfQYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):

NN

<https://teams.live.com/meet/9392336908714?p=ihT4rLnWK7HyYFlnds>

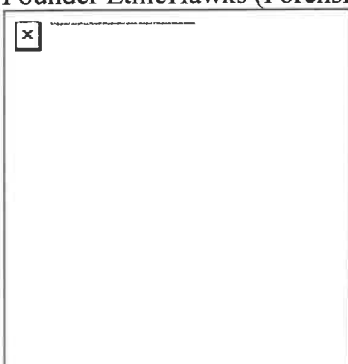
Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw, Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



NN 

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 20:44
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: CLARIFICATION AND CORRECTION: Re: FINAL STATUTORY CLARIFICATION – Terminology Correction (No Withdrawal of Complaint)

Dear Recipients,

I am writing to clarify and correct a terminological imprecision in my previous correspondence dated 15 April 2026.

In my letters, I referred to 'R180 million daily clinical leakage.' Upon further refinement, I acknowledge that the word 'leakage' was imprecise.

The correct factual position is as follows:

The systemic integration gap between Gexus and DMS (proven in the attached Mahlangu RCA) causes misclassification of claims—specifically, chronic medication claims being paid from acute/day-to-day benefits.

This misclassification does not constitute 'leakage' in the strict forensic sense (i.e., money leaving the scheme incorrectly). Rather, it constitutes:

- Erosion of member day-to-day benefits
- Corruption of claims data
- Operational waste
- Plausible inflation of total claims spend

The R180 million figure refers to the average amount GEMS pays out in claims, not an amount lost to leakage.

The systemic gap contributes to the inflation of that R180 million spend, which in turn contributes to the 9.5% contribution increase.

I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint. The systemic failure documented in the Mahlangu RCA remains valid and warrants a forensic audit.

Yours professionally,

Sr. Wilbur W Matthee
 Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
 Health Services Management.
 Founder EthicHawks (Forensic Governance and Compliance)



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IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
(Held at Cape Town)

Case No: 2026-077546

In the matter between:	
WILBUR WILLIAM MATTHEE	Applicant
and	
AFROCENTRIC HEALTH (RF) (PTY) LTD	Respondent
(Registration Number: 1996/009540/07)	

AFFIDAVIT OF SERVICE
(Rule 7 of the Labour Court Rules — Email Service)



I, the undersigned,

WILBUR WILLIAM MATTHEE

Adult male, Identity Number: 890903 5151 087

Registered Nurse (SANC No. 15831886)

Applicant (Self-Represented), residing in Cape Town, Western Cape

do hereby make oath and state as follows:

1. INTRODUCTION AND CAPACITY

1.1 I am the Applicant in the above-captioned proceedings, acting in my own capacity as a self-represented litigant. I am duly authorised to make this affidavit. The facts herein are within my personal knowledge unless otherwise stated, and are true and correct to the best of my knowledge and belief.

1.2 I make this affidavit in compliance with Rule 7 of the Rules for the Conduct of Proceedings before the Labour Court (GN 1665 of 14 October 2011, as amended), to confirm the service of the pleadings in Case No. 2026-077546 on the Respondent.

2. THE PROCEEDINGS

2.1 This case concerns a claim under section 77A of the Basic Conditions of Employment Act 75 of 1997 ("BCEA") for the unlawful salary deduction of R14,811.77 (representing 40.47% of gross monthly salary) effected by the Respondent in July 2025, in contravention of the 25% statutory cap imposed by section 34(2) of the BCEA.

2.2 The Notice of Motion and Founding in the above proceedings was filed with the Registrar of the Labour Court, Cape Town, on 13 April 2026,

3. AUTHORISED SERVICE ADDRESS OF RESPONDENT

3.1 The Respondent's authorised email address for service of documents in these proceedings is:

IR@afrocentrichealth.com

3.2 This email address was expressly stated by the Respondent's authorised representative, Mr Xolile Vincent Manyati (Senior Employee Relations Specialist, AfroCentric Health (Pty) Ltd), in the Respondent's Notice of Opposition of Condonation Application and Answering Affidavit dated 10 December 2025, filed in CCMA Case WECT23564-25. A copy of the relevant page of that document confirming the service address is attached hereto as

ANNEXURE "A"

4. SERVICE EFFECTED

4.1 On

13 April 2026

I dispatched by email to the address IR@afrocentrichealth.com the following documents:

- (a) The Statement of Claim filed in Case No. 2026-077546 (Matthee v AfroCentric Health (RF) (Pty) Ltd) — BCEA section 77A unlawful salary deduction claim;
- (b) All annexures referenced therein and forming part of the filed papers; and
- (c) This Affidavit of Service.

4.2 The email was sent from info@ethichawks.co.za and was delivered successfully to the Respondent's authorised service address. A copy of the email transmission and delivery confirmation is attached hereto as

ANNEXURE "B"

5. CONFIRMATION OF SERVICE

5.1 I confirm that service was effected by electronic mail as expressly provided by the Respondent as their chosen service address in the opposing affidavit, which constitutes valid service in terms of Rule 7(2)(b) of the Labour Court Rules, read with the authorisation given by the Respondent.

5.2 I submit that service has been duly effected and that the Respondent has been properly placed on notice of the proceedings in Case No. 2026-077546.

6. ANNEXURES

The following documents are attached to and form part of this Affidavit of Service:

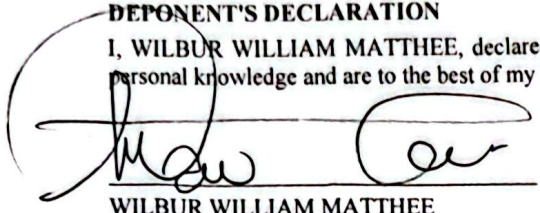
Annexure "A": Notice of Opposition and Answering Affidavit of Mr Xolile Vincent Manyati, dated 10 December 2025 (CCMA Case WECT23564-25), confirming IR@afrocentrichealth.com as the Respondent's authorised service address.

Annexure "B": Email transmission record and delivery confirmation confirming service of the BCEA s77A Notice of Motion and Founding Affidavit on 13 April 2026.



DEPONENT'S DECLARATION

I, WILBUR WILLIAM MATTHEE, declare that the facts set out in this affidavit are within my personal knowledge and are to the best of my knowledge and belief true and correct.


WILBUR WILLIAM MATTHEE

Applicant / Deponent

info@ethichawks.co.za | Tel: 069 635 1435 / 063 378 8782

Signed at CAPE TOWN on ¹³ April 2026
WWM

**COMMISSIONER OF OATHS**

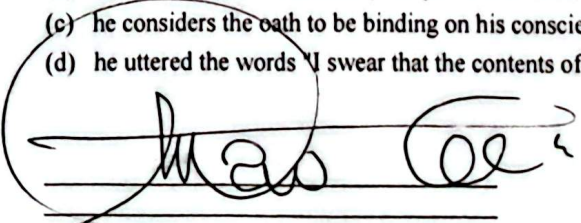
Full Name: BENJAMIN JAMES MASEMOLA

Designation / Capacity: BD 25513

Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT

I certify that on this 13TH day of APRIL 2026, the deponent appeared before me and acknowledged that:

- (a) he knows and understands the contents hereof;
- (b) he has no objection to taking the prescribed oath;
- (c) he considers the oath to be binding on his conscience; and
- (d) he uttered the words "I swear that the contents of this declaration are true, so help me God."



DEPONENT

WILBUR WILLIAM MATTHEE

COMMISSIONER OF OATHS

Signed at CAPE TOWN on this 13TH day of APRIL 2026.

PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 991 0844

A N N E X U R E

“A”

NOTICE OF OPPOSITION OF CONDONATION APPLICATION

Confirming Respondent's Authorised Email Service Address



Forum	Commission for Conciliation, Mediation and Arbitration
Case Reference	WECT23564-25
Parties	Wilbur Matthee (Applicant) v Medscheme Holdings (Respondent)
Document Type	Notice of Opposition of Condonation Application
Deponent	Mr Xolile Vincent Manyati — Senior Employee Relations Specialist
Signed	Johannesburg, 10 December 2025
Authorised Service Email	IR@afrocentrichealth.com
Relevance	Paragraph 3.2 — Respondent's own designated service address

Referred to in paragraph 3.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE

Applicant

And

MEDSCHEME HOLDINGS

Respondent



NOTICE OF OPPOSITION OF CONDONATION APPLICATION

Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

PLEASE TAKE FURTHER NOTE THAT the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address:
IR@afrocentrichealth.com.

Signed at **Johannesburg** on the **10th** day of **December 2025**.

A handwritten signature in black ink, appearing to read "X. Manyati", written over a horizontal line.

XOLILE VINCENT MANYATI

Respondent representative

ANNEXURE

"B"

EMAIL TRANSMISSION RECORD — PROOF OF SERVICE

Electronic service effected 13 April 2026



Case Number	2026-083299
From	info@ethichawks.co.za (Wilbur William Matthee)
To (Primary)	ir@afrocentrichealth.com
To (Copy)	lebohang.mpumlwana@afrocentrichealth.com
Bcc	wilburmat@gmail.com (personal confirmation copy)
Date & Time	13 April 2026 at 10:03 PM SAST
Subject	Service of Statement of Claim — W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another
Read Receipt	blue tick (✓) — confirmed delivery
Relevance	Paragraph 4.2 — Proof of email service on Respondents

Referred to in paragraph 4.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

Service of Application – Wilbur William Matthee v Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd – Case No: 2026-077546

Delivered



Wilbur William Matthee 10:03 PM
to ir, lebohang.mpumlwana, Bcc: wilburmat ✓



Dear Sirs / Madam

NOTICE OF SERVICE – LABOUR COURT APPLICATION

Please find attached the following documents on behalf of the Applicant, Mr Wilbur William Matthee, in the above-mentioned matter under Case No: 2026-077546:

1. Notice of Motion (pages 1–4)
2. Founding Affidavit of Wilbur William Matthee (pages 5–11)
3. Annexure A – Payslip July 2025 (page 14)
4. Annexure B – Human Capital Business Partner Policy extracts (page 16)
5. Annexure C – Written misrepresentation by Second Respondent's manager (page 18)



These documents are served on the First and Second Respondents in accordance with the Labour Court Rules and the Basic Conditions of Employment Act (BCEA) s34(1) and s34(2) read with s77A.

Please note that the Applicant will seek an order for the repayment of unlawfully recovered remuneration as set out in the Notice of Motion.

Kindly confirm receipt of this service in writing.

Yours faithfully

Sr. Wilbur W Matthee

Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)

Health Services Management.

Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za





FREE

21/5/2026-1:48:44 PM

Latest activity

All

Opens

Insights

-
- one of the recipients** opened your email (26th time) 11 minutes ago
Statement of Claim 9 April 2026
-
- one of the recipients** opened your email (21st time) 11 minutes ago
Service of Application – Wilbur William Matthee v Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd – Case No: 2026-077546
-
- one of the recipients** opened your email (81st time) 11 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (31st time) 12 minutes ago
URGENT: Joint Ethical Ruling – 48-Hour Response Required – Exhausted Referral Chain (CMS → HPCSA → SANC → SAPC) – Imminent Life Threat [GEMS 000655789]
-
- one of the recipients** opened your email (80th time) 12 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (20th time) 12 minutes ago
Service of Application – Wilbur William Matthee v Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd – Case No: 2026-077546
-
- one of the recipients** opened your email (79th time) 13 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (25th time) 13 minutes ago
Statement of Claim 9 April 2026
-
- one of the recipients** opened your email (24th time) 19 hours ago
Statement of Claim 9 April 2026

